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Government of India
Ministry of Home Affairs

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Year End Review-2013 Ministry Of Home Affairs

SECURITY RELATED ISSUES IN LWE AFFECTED STATES DISCUSSED

ENACTMENT OF LAW TO PROVIDE SPEEDY JUSTICE AND ENHANCED PUNISHMENT FOR CRIMINALS IN SEXUAL ASSAULT CASES

QUICK REHABILITATION AND RELIEF TO VICTIMS OF UTTARAKHAND

DISASTER AND CYCLONES IN ODISHA AND ANDHRA PRADESH

SPECIAL EMPHASIS ON MODERNISATION OF STATE POLICE FORCES

During the year 2013, the Ministry of Home Affairs dealt with the challenges of security, law and order, disaster management, police modernisation and border management among other issues. Important consultation meetings with the Chief Ministers, DGPs of States/UTs on law and order and naxalities management were also held. The Criminal Law (Amendment) Act, 2013, launch of Crime and Criminal Tracking Network & Systems (CCTNS), Strengthening of Unlawful activities (Prevention) Act, 1967 were other highlights during the year.

The Conference of Chief Ministers was held in Vigyan Bhawan, New Delhi on April 15,2013 to discuss the recommendations contained in the 5th report of 2nd Administrative Reforms Commission. During the Chief Ministers' Conference on June 5, 2013, the Union Home Minister Shri Sushilkumar Shinde had a separate meeting with the Chief Ministers of Andhra Pradesh, Bihar, Chattisgarh, Orissa, Maharashtra, Finance Minister of West Bengal and the Governor of Jharkhand on security related issues in Left Wing Extremism (LWE) affected states.

The Special Industry Initiatives "UDAAN" in J&K was also taken up during the year. On the bilateral and multi-lateral areas, revised travel arrangements between India and Bangladesh, 33rd Asia and Pacific Conference of Correctional Administrators (APCCA) and bilateral discussions with the Homeland Security Department of US in Washington and at New Delhi were other highlights during the year.

Strengthening of Unlawful Activities (Prevention) Act, 1967

The Unlawful Activities (Prevention) Amendment Act, 2012 as passed by the Parliament has come into force from February 01,2013. The Act enlarges the ambit of the "Terrorist Act" by incorporating threats/dangers to the economic security of the country and the monetary stability of India by way of production, smuggling or circulation of high quality counterfeit Indian paper currency. The law increases the period of declaration of an association as unlawful from two years to five years, criminalizes high quality counterfeiting and includes within its scope offences by companies, societies or trusts and provides for punishment to them.

The Criminal Law (Amendment) Act, 2013:

A Committee headed by Justice J. S. Verma, former Chief Justice of Supreme Court was set up on 23rd December, 2012 to give recommendations on amending laws to provide for speedy justice and enhanced punishment for criminals in sexual assault cases. The Justice Verma Committee in its Report submitted on the 23rd January 2013, agreed to most of the provisions of the Criminal Law (Amendment) Bill, 2012. Government wanted to amend criminal laws affecting women immediately and since the Parliament was not in session, the Criminal Law (amendment) Ordinance, 2013 was promulgated on 03.02.2013. In the Budget Session, the Criminal Law [Amendment] Bill, 2013 was passed by the Lok Sabha on 19th March, 2013 and by the Rajya Sabha on 21st March, 2013. The President of India has accorded his assent to the Bill on 2nd April, 2013.

Substantive amendments in IPC, Cr. P. C and Indian Evidence Act have been made to effectively deal with the crime against women. Sentence of death has been provided as punishment in case of rape followed by death or vegetative state of the victim. For the first time acid attack, human trafficking, voyeurism, stalking etc. have been included as a specific offence and severe punishment has been prescribed. Non- treatment of victims of rape and acid attack by the hospitals (Government/ Private) has been made punishable. The police has been made accountable and disobeying of any directions of law (like not recording of FIR) has been made punishable. Adequate provisions have been made to protect the women victim from harassment and humiliation during investigation and trial.

Internal Security

Terrorist activities in the hinterland continue to remain a threat. There have been three incidents of bomb blasts:- first in Hyderabad in which 17 persons died, the second in Bengaluru in which there was no casualty and the third in Bodh Gaya in which no casualty was reported. The MHA has agreed to the request of the Bihar Government for handing over the security of Bodh Gaya Complex to CISF. In some of these incidents, the Investigating Agencies have been able to identify and arrest the persons responsible and in other cases the investigations are on. The Government is committed for safety and security of its citizens and in this regard the arrest of Yasin Bhatkal, Tunda, Haddi and solving of recent blasts cases proves this resolve.

Uttarakhand Disaster of June 2013

The State of Uttarakhand witnessed a severe disaster due to heavy rainfall, cloudbursts and landslides on 16-17th June, 2013. All the 13 districts of Uttarakhand were affected. The disaster was so massive that 580 people lost their lives, while 4473 people were injured. Besides over 5526 people are missing. . **In a massive rescue operation 1,10,000 persons were rescued.** Rs. 145 crore from State Disaster Response Fund (SDRF) were released to the State Government on 20th June 2013. In addition, Rs. 250 crore on an 'on account' basis were released from the National Disaster Response Fund (NDRF) to the State on 19th July 2013. Prime Minister announced an ex-gratia amount of Rs.2.00 lakh to the next of kin of the deceased and Rs.50,000/ each to injured persons from Prime Minister Relief Fund.

Modernisation of State Police Forces

The Scheme for Modernization of State Police Forces (MPF Scheme) has been extended for a further period of five years with effect from the financial year 2012-13 to 2016-17, with funding partly under Non-Plan and partly under Plan. The items required by the State Police under mobility, weapons, equipment, training equipment, forensic equipment are funded under Non-Plan. The construction/upgradation of police stations/outposts, police lines, police housing, forensic science laboratories and training infrastructure, construction of buildings are funded under Plan budget.

Under the Scheme, an allocation of Rs. 8195.53 crore has been approved under Non-Plan and Rs.3750.87 crore under Plan during the XII Plan period (2012-13 – 2016-17). In the current year, outlay for MPF Scheme is Rs.750 crore under Non-Plan and Rs.1097 crore under Plan. Mega City Policing in six cities namely, Ahmedabad, Mumbai, Chennai, Hyderabad, Kolkata and Bengaluru has been approved as a sub-set under Non-Plan component of MPF Scheme.

Crime and Criminal Tracking Network & Systems

Crime and Criminal Tracking Network & Systems (CCTNS), Mission Mode Scheme was approved in 2009 with a provision of Rs 2000 Crores as a 100 % Centrally Sponsored Scheme to be implemented during 2009-2012. This has now been extended up to 31st March, 2015. A Pilot launch of CCTNS was launched on 4th January, 2013 which earmarked connectivity of nearly 2000 CCTNS locations in 25 States/Uts. The implementation of the project has picked up and contracts with System Integrators have been signed in different States/Uts.

Special Industry Initiative (SII) for J&K – 'UDAAN'

The Ministry of Home Affairs have launched a Scheme Special Industry Initiative for Jammu & Kashmir known as "UDAAN", in the nature of partnership between the corporate of India and Ministry of Home Affairs. The scheme is being implemented by the National Skill Development Corporation (NSDC). About 35 leading corporate have partnered with NSDC to train more than 54,000 youth from the State over the next five years. 'UDAAN' partners include leading PSUs such as NTPC, BHEL, BSNL, ONGC, HAL and Canara Bank and private organizations such as Wipro, TCS, HCL Technologies, Infosys, Bajaj Allianz, CMC, Cognizant, Yes Bank, Future Learning, IL &FS, CII, Edusports, Religare, Accenture, Tata Motors, etc.

Revised Travel Arrangements between India and Bangladesh

In order to liberalize the existing Visa Regime between India and Bangladesh and with a view to removing certain difficulties faced by the nationals of either country in obtaining visa, the Revised Travel Arrangements (RTA) between India and Bangladesh was signed at Dhaka on 28th January, 2013. The Visa free regime has been agreed on reciprocal basis for holders of Diplomatic and Official Passports for a period up to 45 days of stay. Grant of double entry visa valid for a

maximum period of three months can be granted to Bangladeshi nationals applying visa for third countries, whose representative Missions are concurrently accredited to Bangladesh from India. It also provides for medical visa, long term multiple employment visa and multiple entry student visa etc. Necessary Circular amending the provisions in the Visa Manual to incorporate the provisions of the new RTA was issued on 12th February, 2013.

33rd Asia and Pacific Conference of Correctional Administrators (APCCA)

The 33rd Asia and Pacific Conference of Correctional Administrators (APCCA) was held from 22-27th September, 2013 in New Delhi. Delegates from 23 member countries and the representatives from States/Uts participated in the Conference. The major theme of the Conference was to exchange views on challenges and initiatives in Prison Administration, induction of organisational culture, meeting the challenges posed by high risk offenders, alternatives to imprisonment etc. The delegates also visited the Tihar Prison on Sept.23, 2013. The deliberations resulted in a number of useful suggestions and ideas which will be further crystallised in next APCCA Conference to be held in Canada in 2014.

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